

25VECV03474 25VECV03474

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-08-03

Motion: DEFENDANTS BMW OF NORTH AMERICA, LLC AND BOB SMITH VC CALABASAS LLC D/B/A BOB SMITH
BMW'S MOTION FOR SUMMARY JUDGMENT

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Case Number: 25VECV03474 Hearing Date: August 3, 2026 Dept: I

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

COUNTY

OF LOS ANGELES

CARLOO

GHARIBIAN, an individual,

Plaintiff,

vs.

BMW OF

NORTH AMERICA, LLC, a Delaware Limited Liability Company, and BOB SMITH VC
CALABASAS LLC, a California Limited Liability Company d/b/a BOB SMITH BMW,
and DOES 1 to 10, inclusive,

Defendants.

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CASE

NO: 25VECV03474

[TENTATIVE]

ORDER RE: DEFENDANTS BMW OF NORTH AMERICA,

LLC AND BOB SMITH VC CALABASAS LLC D/B/A BOB SMITH BMW'S MOTION FOR SUMMARY

JUDGMENT

Dept.

I

DATE:

August 3, 2026

TIME: 8:30 A.M.

COMPLAINT

FILED: JUNE 24, 2025

TRIAL

DATE: NOVEMBER 23, 2026

I.

BACKGROUND

On

June 24, 2025, Plaintiff Carloo Gharibian ("Plaintiff") filed this action against Defendants BMW of North America, LLC ("BMW"), Bob Smith VC Calabasas LLC ("Bob Smith") (collectively "Defendants"), and Does 1 to 10 alleging four causes of action: (1) violation of Song-Beverly Act – breach of express warranty; (2) violation of Song-Beverly Act – breach of implied warranty; (3) violation of Song-Beverly Act Section 1793.2; and (4) negligent repair.

On April 23, 2026, Defendants filed the instant motion for summary judgment on Plaintiff's complaint.

On July 14, 2026, Plaintiff filed an opposition.

On July 22, 2026, Defendants filed their reply.

II.

LEGAL

STANDARDS

In reviewing a motion for summary judgment, the Court must apply a three-step analysis: (1) identify the issues framed by the

pleadings; (2) determine whether the moving party has met his or her initial burden; and (3) determine whether the opposition has demonstrated the existence of a triable, material factual issue. (*Hinesley v. Oakshade Town Center* (2005) 135 Cal.App.4th 289, 294.) “[T]he initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact.” (*Scalf v. D.B. Log Homes, Inc.* (2005) 128 Cal.App.4th 1510, 1519.) A defendant moving for summary judgment or summary adjudication has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action . . . cannot be established, or that there is a complete defense to the cause of action.” (Cal. Code of Civ. Proc. § 437c(p)(2).)

A moving defendant may satisfy the initial burden to show that one or more elements cannot be established by “presenting evidence that conclusively negates an element of the plaintiff’s cause of action or by relying on the plaintiff’s factually devoid discovery responses to show that the plaintiff does not possess, and cannot reasonably obtain, evidence to establish that element.” (*Schmidt v. Citibank, N.A.* (2018) 28 Cal.App.5th 1109, 1119; *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 856 [it is insufficient for the defendant to merely point out the absence of evidence.]; *Gaggero v. Yura* (2003) 108 Cal.App.4th 884, 891.) “The defendant must present evidence, typically in the form of factually devoid discovery responses, showing that plaintiff does not have and cannot reasonably obtain evidence to support his or her claim.” (*Ibid.*)

Unless and until a defendant meets that burden, the plaintiff has no burden to present controverting evidence. (*Consumer Cause, Inc. v. SmileCare* (2001) 91 Cal.App.4th 454, 468 [“There is no obligation on the opposing party . . . to establish anything by affidavit unless and until the moving party has by affidavit stated facts establishing every element . . . necessary to sustain a judgment in his favor.”].) If a defendant fails to meet that burden, summary judgment must be denied, even if the plaintiff fails to file an opposition and fails to proffer any evidence.

On the other hand, if the defendant “has met that burden, the burden shifts to the plaintiff . . . to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (CCP § 437c(p)(2).) The plaintiff may not merely rely on allegations or denials in its pleadings to show that a triable issue of material fact exists, but instead “shall set forth the specific facts showing that a triable issue of

material fact exists as to the cause of action.” (Ibid.) “If the plaintiff cannot do so, summary judgment should be granted.” (Avivi v. Centro Medico Urgente Medical Center (2008) 159 Cal.App.4th 463, 467.)

III. DISCUSSION

Fourth

Cause of Action – Negligent Repair

As

a preliminary matter, Defendants move for summary judgment, or in the alternative, summary adjudication as to the entire complaint on the grounds the Act’s causes of action are barred.

(Mot., p. 2.) However, the fourth

cause of action is negligent repair against Bob Smith. (See Complaint, p. 9.) This is a common law negligence claim, not a claim under the Act. Therefore, this

claim does not turn on whether the Subject Vehicle is a “new motor vehicle.” Defendants’ moving papers do not address the fourth cause of action beyond grouping it with the first, second, and third causes of action. Similarly, Plaintiff’s opposition does not address the fourth cause of action.

Accordingly,

the Court DENIES summary adjudication as to the fourth cause of action.

Defendants’ Burden

Defendants meet their

initial burden as to the first, second, and third causes of action.

Defendants move for summary

judgment, or in the alternative, summary adjudication, on the grounds that Plaintiff’s Song-Beverly causes of action are barred because Plaintiff purchased a used vehicle, which does not qualify as a “new motor vehicle” under the Song Beverly Consumer Warranty Act (“the Act”).

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Song-Beverly Consumer Warranty Act provides for both express and implied warranties and “is a remedial measure intended for the protection of consumers and should be given a construction consistent with that purpose.” (Brand v. Hyundai Motor America (2014) 226 Cal.App.4th 1538, 1545 (quoting Oregel

v. American Isuzu Motors, Inc. (2001) 90 Cal.App.4th 1094, 1103.)

A pre-owned or

used vehicle may remain under warranty if purchased from an authorized retailer with a remaining balance of the manufacturer's new car warranty and expressly issued with the sale. (Rodriguez v. FCA US LLC (2024) 17 Cal.5th 189, 196 ["We conclude that a motor vehicle purchased with an unexpired manufacturer's new car warranty does not qualify as a 'motor vehicle sold with a manufacturer's new car warranty' under section 1793.22, subdivision (e)(2)'s definition of 'new motor vehicle' unless the new car warranty was issued with the sale"]; see Civ. Code, § 1793.22, subd. (e)(2).)

"New

motor vehicle' means a new motor vehicle that is bought or used primarily for personal, family, or household purposes. 'New motor vehicle' ... includes ... a dealer-owned vehicle and a 'demonstrator' or other motor vehicle sold with a manufacturer's new car warranty.... A demonstrator is a vehicle assigned by a dealer for the purpose of demonstrating qualities and characteristics common to vehicles of the same or similar model and type." (Civ. Code § 1793.22.)

The following facts are

undisputed: On June 24, 2023, Plaintiff purchased a used 2020 BMW 840i ("Subject Vehicle") from BMW Mini of Monrovia in Monrovia California. (Plaintiff's Responses to Separate Statement of Undisputed Material Fact ("PR-SSUMF") No. 1; Greenstein Decl., ¶ 2, Ex. 1.) At the time of purchase, the Subject Vehicle had 14,867 miles on the odometer. (PR-SSUMF No. 2; Greenstein Decl., ¶ 2, Ex. 1.) The Subject Vehicle was sold as a used Certified Pre-owned Vehicle. (PR-SSUMF No. 3; Greenstein Decl., ¶ 2, Ex. 1.) The Subject Vehicle came with a 4-year/50,000-mile New Vehicle Limited Warranty when it was originally sold on May 5, 2020. (PR-SSUMF No. 4; Greenstein Decl., Ex. 3.) Plaintiff received the balance of the 4-year/50,000-mile New Vehicle Limited Warranty. (PR-SSUMF No. 5; Greenstein Decl., Ex. 3.) BMW did not provide any new manufacturer warranties when the Subject Vehicle was sold to Plaintiff on June 24, 2023, though the Subject Vehicle came with a new CPO warranty at the time of Plaintiff's purchase. (PR-SSUMF No. 6; Greenstein Decl., Ex. 3.)

Here, Defendants offer

evidence to establish the Subject Vehicle was pre-owned (i.e., used) at the time Plaintiff purchased, and that no new express warranty was issued at the time Plaintiff purchased the Subject Vehicle. The Retail Installment Sale Contract shows the Subject Vehicle was purchased used. (See PR-SSUMF No. 1; Greenstein Decl., ¶ 2, Ex. 1.) Further, the Warranty Vehicle Inquiry shows the New Vehicle Limited Warranty was issued on May 5, 2020, prior to Plaintiff's purchase date, and expired on May 5, 2024. (PR-SSUMF No. 6; Greenstein Decl., Ex. 3.)

Defendants therefore meet their initial burden to show the Subject Vehicle is not a new motor vehicle within the meaning of the Act.

Plaintiff's Burden

The burden now shifts to Plaintiff to show whether a triable issue of material fact exists as to whether Plaintiff's first, second, and third causes of action are barred because the Subject Vehicle is used.

In opposition, Plaintiff relies heavily on Civil Code section 1795.5, arguing liability arises under the Act for Certified Pre-Owned ("CPO") vehicles, such as the Subject Vehicle, where an express warranty is issued in connection with the sale. (Opp., p. 2.) Plaintiff argues Defendants are bound by Civil Code section 1795.5 because it is a self-professed distributor and a retail seller. (Opp., p. 5.)

As a preliminary matter, the Court finds Plaintiff's opposition sets forth a new legal theory under Civil Code section 1795.5 that the complaint does not allege. "The pleadings define the issues to be considered on a motion for summary judgment." (Ferrari v. Grand Canyon Dories (1995) 32 Cal.App.4th 248, 252.) "The purpose of the law of summary judgment is to provide courts with a mechanism to cut through the parties' pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute." (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.) The complaint alleges the Subject Vehicle was purchased as a CPO vehicle with a new and full CPO warranty and therefore constitutes a "new motor vehicle" under the Act. (See Compl., ¶ 9.) Section 1795.5, on the other hand, addresses liability

for distributors and retail sellers of used consumer goods. (See Civ. Code, § 1795.5.) Plaintiff does not allege in the complaint that Defendants are liable under section 1795.5. A party may not oppose a summary judgment motion based on a theory not alleged in the pleadings. (California Bank & Trust v. Lawlor (2013) 222 Cal.App.4th 625, 637, n. 3.)

Liability under section 1795.5 therefore falls outside the scope of the complaint and cannot be relied on to defeat Defendants' motion for summary judgment.

Moreover, Plaintiff fails to carry her burden to establish a triable issue of material fact as to whether the Subject Vehicle is a "new vehicle" for the purposes of the Act. To determine whether Plaintiff purchased a "new vehicle" that is covered by the Act, the Court must decide whether Plaintiff has established that the Subject Vehicle was sold with a manufacturer's new car warranty issued at the time of sale to Plaintiff.

Plaintiff fails to establish a question of material fact as to whether the Subject Vehicle was in one of the two "unique" categories of "used" vehicles that manufacturers or their dealer-representatives treat as new upon sale by providing the same type of manufacturer's warranty that accompany new cars. "In every case, the first customer to purchase or lease a demonstrator or dealer-owned vehicle receives a new warranty arising in that transaction, directly from the manufacturer' In other words, a warranty in this context is a guarantee made by the manufacturer to a retail buyer. Before a sale transaction, there is no such warranty to speak of; the manufacturer or its dealer representative owns the car. The sale of a dealer-owned vehicle or demonstrator to a retail buyer is what gives rise to a new car warranty." (Rodriguez, supra, 17 Cal.5th at 198–99, emphasis in original.)

Plaintiff does not contend that the Subject Vehicle was a demonstrator ("a vehicle assigned by a dealer for the purpose of demonstrating qualities and characteristics common to vehicles of the same or similar model and type") or "dealer-owned." Rodriguez made clear that "if the Legislature had intended to define 'new motor vehicle' to include a potentially vast category of used cars' with unexpired new car warranties, 'it would have been done so more clearly and explicitly than tucking it into a reference to demonstrators and dealer-owned vehicles.'" (Id., at 199.) Plaintiff

puts forth no additional material facts to dispute that Plaintiff purchased a used vehicle. Plaintiff fails to submit evidence showing Defendants issued a new express written warranty at the time of the sale. Thus, Plaintiff does not establish a triable issue of material fact as to whether she purchased a new vehicle for purposes of the Act.

Therefore,

Defendants' motion for summary adjudication is GRANTED as to Plaintiff's first, second, and third causes of action.

Leave
to Amend

Plaintiff

requests leave to amend to file a First Amended Complaint to reflect the section 1795.5 theory of liability. Here, Plaintiff has been aware of the fact the Subject Vehicle was purchased as a CPO vehicle at the time the operative complaint was filed. "When a plaintiff seeks leave to amend his or her complaint only after the defendant has mounted a summary judgment motion directed at the allegations of the unamended complaint, even though the plaintiff has been aware of the facts upon which the amendment is based, "[i]t would be patently unfair to allow plaintiffs to defeat [the] summary judgment motion by allowing them to present a 'moving target' unbounded by the pleadings." (Falcon v. Long Beach Genetics, Inc. (2014) 224 Cal.App.4th 1263, 1280, citing Melican v. Regents of University of California (2007) 151 Cal.App.4th 168, 176.) Therefore, the Court exercises its discretion to deny Plaintiff's request for leave to amend.

IV. CONCLUSION

Based on the foregoing, Defendants BMW of North America, LLC and Bob Smith VC Calabasas LLC d/b/a Bob Smith BMW's motion for summary adjudication is GRANTED as to the first, second, and third causes of action, and DENIED as to the fourth cause of action.

Plaintiff's
request for leave to amend is DENIED.

Moving party is ordered to give

notice.

Dated: August

3, 2026 _____

Hon. Karen Moskowitz

Judge

of the Superior Court